

TENTATIVE RULINGS

DEPARTMENT C33

Judge Sandy N. Leal

August 6, 2026 at 10:00 AM

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website in the morning, prior to the hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the Department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5233. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal.App.4th 436, 442, fn. 1 (2012.))

Appearances: Department C33 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C33 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California.

All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time. All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this Department by either coming to the Department at the designated hearing time or contacting the Courtroom Clerk at (657) 622-5233 to obtain login information. For remote appearances by the media or public, please contact the Courtroom Clerk 24 hours in advance so as not to interrupt the hearings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1	25-01510790 16 Waves End, LLC vs. Hwang	Motion for Protective Order Plaintiff 16 Waves End, LLC’s motion for protective order is DENIED. Legal standard Courts may issue a protective order including a direction that the requested discovery need not be answered or produced. (Code Civ. Proc., § 2030.090, subd. (b)(1) (interrogatories); § 2031.060, subd. (b)(1) (requests for production); § 2033.080, subd. (b)(1) (requests for admission).) The court shall also limit the scope of discovery if it determines the burden, expense, or intrusiveness of the discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence (Code Civ. Proc., § 2017.020, subd. (a).) The court may make this determination pursuant to a motion for protective order. A motion for a protective order shall be accompanied by a meet and confer declaration under section 2016.040 showing a reasonable and good faith attempt to informally resolve the issues presented by the motion. (Code Civ. Proc., §§ 2030.090; 2031.060; 2033.080; 2017.020.) Discovery at issue On 2/2/25, Defendants served written discovery on Plaintiff including Requests for Production of Documents, Requests for Admission, and Form Interrogatories. (Katofsky Decl., ¶ 3, Ex. A, B, C.) Specifically, Defendants served 82 Requests for Production of Documents, 100 Requests for Admissions, and Form Interrogatories, including Form Interrogatory Number 17.1 regarding responses to the Requests for Admission. On 2/10/26, counsel for Plaintiff sent a meet and confer letter to Defendants’ counsel regarding the discovery. (Katofsky Decl., ¶ 4, Ex. D.) Counsel for the parties participated in a further meet and confer telephone call and an email exchange but were unable to reach a resolution. (Katofsky Decl., ¶¶ 5, 6, Ex. E.) Plaintiff contends the requests for production are overly broad as they request documents supporting allegations in the complaint. Specifically, requests 1 through 43 request Plaintiff produce documents supporting contentions made in specific paragraphs of the complaint. Plaintiff further contends the requests for admission are an improper attempt to determine the merits of the case. Plaintiff seeks a protective order that includes the direction Plaintiff “is not required to answer or otherwise respond” to <i>any</i> of Defendants’ discovery. (Ntc. of Mtn. at 2:3-8; Mtn. at 3:12-18.) Plaintiff does not sufficiently address, however, how the grounds set forth for its request apply to all the discovery requests at issue.

For example, Defendants' request for admission numbers, 14, 15, and 16 ask, respectively:

- Admit that by written addendum dated May 31, 2024, the Crystal Cove Community Association granted Defendants a construction deadline extension.
- Admit that the Crystal Cove Community Association granted Defendants a three year extension of their construction deadline.
- Admit that Defendants' HOA-approved construction completion deadline is May 10, 2028.

(Katofsky Decl., ¶ 3, Ex. A at p. 3.)

None of these requests "seek admissions regarding the ultimate issues in the case" as Plaintiff contends. (Mtn. at 5:15-16.)

Additionally, Plaintiff has not demonstrated how *all* the propounded form interrogatories are similarly problematic, particularly where they include standard requests regarding, for example, insurance, the damages alleged, and investigations. (Form Interrogatories Numbers 4.1-4.2, 7.1-7.3, 9.1-9.2, and 12.1-12.7). (Katofsky Decl., ¶ 3, Ex. C.)

Finally, as mentioned above, Plaintiff's grounds for a protective order as to the requests for production appear to apply to requests 1 through 43, which request Plaintiff produce documents supporting contentions made in specific paragraphs of the complaint. As an initial matter, Plaintiff provides no support for its contention "[r]equests demanding all documents supporting every allegation of a complaint are routinely rejected by courts." (Mtn. at 5:4-5). Moreover, Plaintiff does not address why the requests that do not fall into this category are also subject to a protective order or are otherwise overly burdensome or intrusive.

On reply, Plaintiff requests the Court narrow or phase discovery. (Reply at 2:10-20; 6:2.) As discussed above, the relief requested by Plaintiff's Notice of Motion and Motion was, however, for an order stating Plaintiff is not required to response to *any* of Defendants' discovery. Moreover, Plaintiff has not sufficiently identified any specific way in which discovery should be narrowed or phased.

Parties' request for sanctions

The Court shall impose a monetary sanction against any party who unsuccessfully makes a motion for a protective order without substantial justification. (Code Civ. Proc., §§ 2030.090, subd. (d), 2031.060, subd. (h), and 2033.080, subd.)

The Court GRANTS Defendants' request for sanctions in the reduced amount of \$1,940.00.

The Court DENIES Plaintiff's request for sanctions in the amount of \$5,000 pursuant to Code of Civil Procedure section 128.7 as a motion for sanctions under section 128.7 "shall be made separately from other motions or requests." (Code Civ. Proc., § 128.7).

2	25-01496788 <i>Assaf vs. Lowtemp</i>	1) Motion to Compel Further Responses to Form Interrogatories 2) Motion to Compel Response to Requests for Admissions <u>Motion No. 1</u> Plaintiff Adnan Assaf’s motion to compel defendant Rocky Lowtemp to provide responses to Plaintiff’s Form Interrogatories, Set One, is DENIED. The proof of service shows Plaintiff served Form Interrogatories, Set One, on Defendant who is appearing in <i>pro per</i> on 11-25-25 via email. (Soliman Decl., ¶ 4, Ex. 1.) There is no proof that Defendant consented to being served by electronic mail. Without express consent as required by Code of Civil Procedure section 1010.6, subdivision (c), service of the Form Interrogatories, Set One, by electronic mail on Defendant was insufficient. Plaintiff to give notice. <u>Motion No. 2:</u> Plaintiff Adnan Assaf’s motion for an order establishing admissions of defendant Rocky Lowtemp for failure to provide responses to Plaintiff’s Requests for Admission, Set One, is DENIED. The proof of service shows Plaintiff served Requests for Admission, Set One, on Defendant who is appearing in <i>pro per</i> on 11-25-25 via email. (Soliman Decl., ¶ 4, Ex. 1.) There is no proof that Defendant consented to being served by electronic mail. Without express consent as required by Code of Civil Procedure section 1010.6, subdivision (c), service of the Requests for Admission, Set One, by electronic mail on Defendant was insufficient. Plaintiff to give notice.
3	23-01313302 <i>Carmona vs. Mazella New Tech Corporation</i>	Motion for Summary Judgment and/or Adjudication Cross-Defendant OC Metals, Inc.’s (“OC Metals”) motion for summary judgment or, in the alternative, summary adjudication as to the Cross-Complaint of Mazzella New Tech Corporation (“Mazzella”) is CONTINUED to _____. It appears Mazzella filed an opposition to the wrong motion for summary judgment/adjudication (“MSJ”). OC Metals filed one MSJ against Plaintiff on the Complaint (ROA 248) and filed a separate MSJ against Mazzella on Mazella’s Cross-Complaint against OC Metals. (ROA 335.) On 7/10/26, Mazella filed its opposition to OC Metals MSJ, Response to Separate Statement; and Evidentiary Objections to OC Metals’ evidence. (ROA 418, 420, 431.) Although Mazella filed a Response to OC Metals’ Separate Statement, Mazella’s Responsive Separate Statement responds to OC Metals’ Separate Statement in support of its MSJ against Plaintiff and not OC

		Metals’ Separate Statement in support of its MSJ against Mazella. (See ROA 242, 331, 418.) Similarly, Mazella’s Memorandum of Points and Authorities responds to arguments made by OC Metals in its MSJ against Plaintiff and not OC Metals’ MSJ against Mazella. (See ROA 246, 327, 420.) Lastly, Mazella’s Evidentiary Objections object to declarations of Mari Kurtz, Anne Marie Ellis and Charles Temple. (ROA 431.) Although OC Metals filed a declaration of Temple in support of its MSJ against Plaintiff, no such declaration was filed in support of its MSJ against Mazella. (ROA 249, 336, 431.) Therefore, it appears to the court that Mazella opposed the wrong MSJ. In lieu of ruling on OC Metals MSJ as unopposed, given the public policy favoring disposition on the merits, the court will continue the hearing and allow Mazzella to file a proper opposition to OC Metals’ MSJ. Mazzella to file an opposition no later than 20 days before the continued hearing. OC Metals may file a reply no later than 11 days before the continued hearing. Moving party to give notice.
5	23-01310202 <i>Er vs. Chow</i>	1) Motion to Compel Deposition (Oral or Written) 2) Motion to Quash Subpoena <u>Motion to Quash and for Protective Order</u> Non-Party Xuying Liu’s Motion to Quash and for a Protective Order is DENIED in part and GRANTED in part. Liu is ORDERED to appear for her deposition and produce the requested documents. However, the Court limits the document requests to documents from 2020 to present. Code of Civil Procedure section 1987.1 provides, in part: “[T]he court, upon motion reasonably made by [a party, witness, consumer, or employee] . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Code Civ. Proc., § 1987.1, subds. (a)-(b).) “The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” (Code Civ. Proc., § 2025.420(b).) “If the motion for a protective order is denied in whole or in part, the court may order that the deponent provide or permit the discovery

		against which protection was sought on those terms and conditions that are just.” (Code Civ. Proc., § 2025.420(g).) Liu fails to demonstrate good cause to prohibit or limit the conditions of her deposition. Her claim that she has no new information beyond what the parties possess is unpersuasive. Liu provides no information with which the Court may evaluate her claim. Further, the Defendant has the right to test Liu’s assertion. The Court finds the document requests are overbroad as to time, thus, limits each request to documents from 2020 to present. Accordingly, Liu is ordered to appear to her deposition and produce responsive documents. <u>Motion to Compel Deposition</u> Defendant Caesar Global Alliance, Inc.’s Motion to Compel Non-Party Xuying Liu’s Attendance at Deposition is DENIED as MOOT. This Court has already ordered Liu to appear. Additionally, Defendant’s request for sanctions is denied. Defendant filed its motion after there was a pending motion for protective order, thus, there was substantial justification in opposing the motion.
6	25-01477832 <i>Gutierrez vs. Spieckerman</i>	1) Motion for Protective Order 2) Motion to Compel Answers to Special Interrogatories 3) Motion to Compel Answers to Special Interrogatories Defendants’ Motion for a Protective Order is DENIED as moot. Plaintiff’s Motions to Compel are GRANTED, in part, and DENIED, in part. Defendants Paul Spieckerman and Jessy Trostle move for a protective order that plaintiff’s special interrogatories, set two, (SROG) consisting of 140 interrogatories per defendant, need not be answered in their entirety, and for monetary sanctions against Genaro Gutierrez Jr. and his counsel of record in the amount of \$1,990. Plaintiff Genaro Gutierrez Jr. moves for an order compelling Paul Spieckerman and Jessy Trostle to provide verified responses to the same SROGs, without objection, and for monetary sanctions in the amount of \$7,095 against each defendant and their counsel of record. On 6/11/26, the court continued the hearing on these motions and required the parties to meet and confer further. According to the Joint Statement of Items in Dispute and Parties’ Respective Positions, the parties agreed that defendants need only answer 48 interrogatories, i.e., nos. 47-50, 59-62, 67-70, 83-86, 87-90, 91-94, 95-98, 99-102, 118-121, 130-133, 150-153, and 178-182. The parties also agreed to withdraw their respective requests for monetary sanctions. Therefore, Defendants’ motion for a protective order is moot and therefore denied.

	As to Plaintiff's motions to compel, the only issue that remains is whether filing a motion for a protective order preserved Defendants' objections or whether their objections have been waived because they did not serve responses by the 30-day deadline. Defendants argue the filing of the motion for a protective order preserves their right to state necessary objections to the interrogatories even if a court orders responses. Defendants also argue the court should hold that because of the productive negotiations and agreements memorialized by the parties, plaintiff's motions to compel are now moot and defendants should be permitted to submit verified, substantive responses to the agreed discovery without having to waive specific necessary objections. Plaintiff informs the court that Defendants have not yet served the agreed upon responses. Plaintiff therefore contends the motions are not moot and asks the court to order responses to SROG, nos. 47-50, 59-62, 67-70, 83-86, 87-90, 91-94, 95-98, 99-102, 118 121, 130-133, 150-153, and 178-182 without any objections. Plaintiff argues a protective order does not relieve a responding party from the obligation to serve a response or, at the very least, an objection. Plaintiff also argues that Defendants have not met the requirements set forth in Code of Civil Procedure, section 2030.290 for relief from waiver of objections. The court agrees. "Within 30 days after service of interrogatories, the party to whom the interrogatories are propounded shall serve the original of the response to them on the propounding party, . . . unless on motion of the responding party the court has extended the time for response." (§ 2030.260, subd. (a).) The parties may also agree in writing to extend the deadline to respond. (§ 2030.270, subds. (a), (b).) Failure to serve timely responses waives "any objections, including one based on privilege or on the protection of work product . . . The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied: [¶] (1) The party has subsequently served a response that is in substantial compliance with Sections 2030.210, 2030.220, 2030.230, and 2030.240. [¶] (2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect." (§ 2030.290, subd. (a).) When interrogatories have been propounded, the responding party . . . may promptly move for a protective order" (Code Civ. Proc., § 2030.090, subd. (a).) Here, Defendants' responses to the SROGs were due on 12/23/25. Instead of serving responses, Defendants filed and served a motion for a protective order the day they were due. It is undisputed that Defendants neither obtained an agreement from Plaintiff nor a court order extending the deadline. To date, Defendants have not served responses.
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		Defendants have not cited any authority supporting their proposition that filing a motion for a protective order preserves their objections. Nor is the court aware of any. As the leading treatise on civil pretrial procedure cautions: “Protective orders usually are sought ‘under the gun’ because responses are due. If the opposing side is unwilling to stipulate to an extension, you may have to obtain a court order shortening the time for hearing or extending the time to respond until after the hearing on the protective order (<i>in order to avoid waiver of any objections</i>)[.]” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group, 2026), ¶ 8:1007, p. 8F-4 [emphasis added].) Further, Defendants have not satisfied the requirements to obtain relief from waiver of their objections under section 2030.290, subd. (a). Accordingly, the court finds Defendants waived their objections to the SROGs, including ones based on privilege or on the protection of work product. Based on the foregoing, Plaintiff’s motions to compel are granted, in part, as to nos. 47-50, 59-62, 67-70, 83-86, 87-90, 91-94, 95-98, 99-102, 118 121, 130-133, 150-153, and 178-182. The motion is denied, in part, as to the remaining SROGs and the request for sanctions. Defendants are ordered to serve verified responses, without objections, to plaintiff’s special interrogatories, set two, nos. 47-50, 59-62, 67-70, 83-86, 87-90, 91-94, 95-98, 99-102, 118 121, 130-133, 150-153, and 178-182, within 14 days.
8	24-01400761 <i>National Funding, Inc. vs. Slide & Ride LLC</i>	1) Motion to Be Relieved as Counsel of Record 2) Motion to Be Relieved as Counsel of Record The motions of attorney Jefferey P. Boykin to withdraw as attorney of record for Defendants David King and Slide & Ride LLC is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) Attorney will be relieved as counsel of record for clients effective upon filing of a proof of service of the signed order on clients. Moving attorney is to give notice.
9	25-01485328 <i>Rideout vs. MT Power Group</i>	Motion for Summary Judgment and/or Adjudication Defendant MT Power Group’s Motion for Summary Judgment is GRANTED. Defendant’s request for judicial notice of the Complaint, although not necessary, is granted. The Court declines to rule on Defendant’s objections to portions Plaintiff’s deposition because the objections are not dispositive to the motion. “The existence of a duty owed by a defendant to a plaintiff is a question of law for the court” (<i>Garcia v. Paramount Citrus Assn., Inc.</i> (2008) 164 Cal.App.4th 1448, 1453.) “In determining whether a duty should be imposed in a particular case, a court must consider the following factors in the circumstances of the case: the foreseeability of harm to the injured party, the degree of certainty that party has suffered injury, the closeness of the connection between the condition of the property and the injury, the moral blame attached to the landowner’s conduct, the policy of

preventing future harm, the extent of the burden the duty would impose compared to the benefit to the community from imposing the burden, and the practical availability of insurance for the risk involved (that is, cost, prevalence and availability of such insurance).” (<i>Id.</i> at 1454 [citing to <i>Rowland v. Christian</i> (1968) 69 Cal.2d 108, 113].) “California law requires landowners to maintain land in their possession and control in a reasonably safe condition. In the case of a landlord, this general duty of maintenance, which is owed to tenants and patrons, has been held to include the duty to take reasonable steps to secure common areas against foreseeable criminal acts of third parties that are likely to occur in the absence of such precautionary measures.” (<i>Wiener v. Southcoast Childcare Centers, Inc.</i> (2004) 32 Cal.4th 1138, 1146 (cleaned up).) “In the case of a criminal assault, the decision to impose a duty of care to protect against criminal assaults requires balancing the foreseeability of the harm against the burden of the duty to be imposed. In cases where the burden of preventing future harm is great, a high degree of foreseeability may be required. On the other hand, in cases where there are strong policy reasons for preventing the harm, or the harm can be prevented by simple means, a lesser degree of foreseeability may be required.” (<i>Ibid.</i>) “While there may be circumstances where the hiring of security guards will be required to satisfy a landowner's duty of care, such action will rarely, if ever, be found to be a minimal burden. The monetary costs of security guards is not insignificant. Moreover, the obligation to provide patrols adequate to deter criminal conduct is not well defined. No one really knows why people commit crime, hence no one really knows what is adequate deterrence in any given situation. Finally, the social costs of imposing a duty on landowners to hire private police forces are also not insignificant. For these reasons, we conclude that a high degree of foreseeability is required in order to find that the scope of a landlord's duty of care includes the hiring of security guards. We further conclude that the requisite degree of foreseeability rarely, if ever, can be proven in the absence of prior similar incidents of violent crime on the landowner's premises.” (<i>Ann M. v. Pacific Plaza Shopping Center</i> (1993) 6 Cal.4th 666, 679.) Defendant has satisfied its burden of showing Plaintiff cannot establish Defendant owed patrons a duty to prevent criminal conduct by third parties. This incident is the only customer on customer violence that has occurred at Defendant’s store. (Mint Depo., 39:14-17.) Thus, there are no sufficiently similar incidents to impose a duty to hire a security guard or take other additional measures to prevent criminal conduct. Thus, the burden shifts to Plaintiff to show an issue of material fact as to whether there were sufficient similar incidents to warrant imposing the duty on Defendant. Plaintiff has failed to show sufficient prior similar incidents. Plaintiff claims Defendant calling the police approximately 30 times in the years leading up to the incident as similar. However, the calls were mostly
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		regarding theft or trespassing, not physical violence. (Mintz Depo., 23:25-24:16.) Plaintiff also claims having homeless persons on the premises is a factor which should be considered. However, Plaintiff offers no explanation as to how the presence of homeless persons inherently makes the premises dangerous or create a high degree of likelihood that physical violence will occur on the premises. Additionally, Plaintiff has not even established the unidentified person was homeless himself. Thus, it is unclear how this incident is connected to the presence of homeless persons, unless Plaintiff and her counsel are suggesting the presence of homeless persons implicates a high degree of likelihood of violent crime. There are only two other incidents of physical violence that occurred on the premises in the four years leading up to the incident. In first incident, Defendant's employee, Mitchell, told a person he was not allowed to stand in front of the store who became belligerent and told Mitchell he was not going to leave. Mitchell approached the man and the man swung at him with a beer bottle but missed. (Mintz Depo., 27:5:28:6.) In the second incident, a man was instructed to leave because his claimed service animal was not on a leash. The man went to his RV in the parking lot. When Mintz came to collect a shopping cart near the RV, the man threatened Mintz warning he would attack Mintz if he got near. The man shoved Mintz when he came to collect the cart. (Mintz Depo., 29:4-30:2.) In both incidents there were real warning signs of agitation and the employees proceeded in the face of those signs. However, in Plaintiff's case, she was attacked unprovoked. Thus, the incidents are distinct and infrequent. Thus, Plaintiff has failed to demonstrate there was a high degree of foreseeability of criminal conduct which warrants imposing a heightened duty on Defendant to prevent the criminal conduct of the unidentified person. Additionally, even assuming Defendant had a duty to protect Plaintiff, Plaintiff has failed to present any evidence Defendant knew of any of the behavior Plaintiff claims precipitated the attack. Accordingly, summary judgment is proper.
10	25-01466414 <i>Seeds vs. General Motors, LLC</i>	Motion to Compel Deposition (Oral or Written) Defendant General Motors LLC's Motion for Compliance Pursuant To C.C.P. § 871.26 is GRANTED. Defendant moves to compel plaintiff Gary N. Seeds to appear for his initial deposition and for monetary sanctions against Plaintiff's attorneys, Strategic Legal Practices, APC, in the sum of \$1,500. Defendant brings this Motion pursuant Code of Civil Procedure section 871.26, subdivisions (c)(1) and (j)(2), which state: (c) Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours, of the following deponents:

		(1) The plaintiff. ... (j) Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows: (2) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c). . . ” (Civ. Proc. Code § 871.26.) Defendant filed its responsive pleading on 7/11/25. Thus, Defendant had the right to take Plaintiff's initial deposition by 11/7/25. To date, Plaintiff has not complied with section 871.26, subdivision (c)(1). Plaintiff's opposition fails to establish good cause for failing to comply. Plaintiff objected to the initially noticed August 2025 deposition, cancelled the agreed upon February 2026 deposition, failed to respond to Defendant's attempts to reschedule the February 2026 deposition, and failed to inform Defendant that Plaintiff's counsel lost contact with Plaintiff in February 2026. As a result, Defendant was forced to file the instant motion. Plaintiff's counsel had ample opportunity to comply with section 871.26, subdivision (c)(1), before losing contact with Plaintiff in February 2026. Plaintiff's counsel did not file a motion to be relieved as counsel until 7/30/26, which is not scheduled for hearing until 3/4/27. Plaintiff's counsel should have informed Defendant that they lost contact with Plaintiff and filed their motion to be relieved closer to February when they lost contact. Doing so likely would have avoided the need to file the instant motion. The motion is granted. Plaintiff is ordered to appear at the initial deposition as outlined in Code of Civil Procedure section 871.26 within 10 calendar days. Plaintiff's counsel is ordered to pay monetary sanctions to Defendant in the amount of \$1,500 within 15 business days.
11	25-01529245 <i>Webb vs. Orange County Solar, Contracting Services Inc.</i>	Motion to Compel Arbitration The Motion to Compel Arbitration by Defendants Orange County Solar Contracting Services, Inc. and Vincent Curcie is GRANTED. Plaintiff's objections (ROA 34) are overruled. In the Complaint filed 11/25/25, Plaintiff alleges claims arising from his employment with Defendant between March 2024 – August 2025.

	Defendants move to compel arbitration of Plaintiff’s complaint pursuant to the four-page Mutual Dispute Resolution Agreement attached as Exhibit A to the Torres Declaration dated March 11, 2024, which states in part the following: “Other than as provided in this Agreement, the Company and I agree that any controversy, dispute, or claim that could otherwise be raised in court (“Covered Claim”) that the Company has against me or the I have against the Company, its current or former officers, directors, members, employees, vendors, clients, customers, agents, parents, subsidiaries, affiliated companies, successors, or assigns, shall be settled exclusively by binding arbitration rather than in court. It is the parties’ intent that all claims between them covered by this Agreement are to be resolved through binding arbitration to the fullest extent permitted by law, not an administrative proceeding or court. However, if an arbitration award would be rendered ineffectual without provisional relief including, but not limited to, preliminary injunctions or temporary restraining orders, either party may request such relief from a court of competent jurisdiction to preserve the status quo pending arbitration.” (Ex. A, § II.) Plaintiff opposes the motion on the grounds that Defendant has not established Plaintiff knowingly consented to the arbitration agreement the agreement was “imposed through surprise and oppression.” (Opp., pp. 2-3.) Legal Standard: “General principles of contract law determine whether the parties have entered a binding agreement to arbitrate.” (Pinnacle Museum Tower Assn. v. Pinnacle Mkt. Dev. (US), LLC (2012) 55 Cal. 4th 223, 236.) “Generally, an arbitration agreement must be memorialized in writing.” (Id.) “A party’s acceptance of an agreement to arbitrate may be express, as where a party signs the agreement,” but “[a] signed agreement is not necessary, however, and a party’s acceptance may be implied in fact[.]” (Id.) “The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (Id.) “[U]nconscionability has both a ‘procedural’ and a ‘substantive’ element, the former focusing on ‘oppression’ or ‘surprise’ due to unequal bargaining power, the latter on ‘overly harsh’ or ‘one-sided’ results.” (Armendariz v. Found. Health Psychcare Servs., Inc. (2000) 24 Cal. 4th 83, 114.) “The prevailing view is that [procedural and substantive unconscionability] must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.” (Id.) “But they need not be present in the same degree.” (Id.) “Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness
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or unreasonableness of the substantive terms themselves.” (Id.) “In other words, the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (Id.) The Court should consider five factors to determine whether an arbitration agreement is enforceable in the employment context. (Id. at 102.) The agreement must: 1) provide for a neutral arbitrator; 2) provide for more than minimal discovery; 3) require the arbitrator to issue a written decision; 4) provide for the same remedies that

would otherwise be available to the employee in court; and 5) not require employees to pay either unreasonable costs or any arbitrators’ fees or expenses as a condition of access to the arbitration forum. (Id.)

California courts have held an individual’s failure to read or understand the terms of an arbitration agreement does not alone render it unconscionable. (See *Brookwood v. Bank of America* (1996) 45 Cal.App.4th 1667, 1674.) Failure to provide a copy of the rules or clearly identify the rules so that the employee could locate them may give rise to a finding of some unconscionability. (See *Carbajal v. CWPSC, Inc.* (2016) 245 Cal.App.4th 227, 245 [finding moderate level of procedural unconscionability based on adhesive nature and failure to attach or identify governing rules in employment context].)

“It is well settled that adhesion contracts in the employment context, that is, those contracts offered to employees on a take-it-or-leave-it basis, typically contain some aspects of procedural unconscionability. Assuming the Agreement here is adhesive in character, this adhesive aspect of an agreement is not dispositive. Courts have observed that when, as here, there is no other indication of oppression or surprise, the degree of procedural unconscionability of an adhesion agreement is low, and the agreement will be enforceable unless the degree of substantive unconscionability is high. (*Peng v. First Republic Bank* (2013) 219 Cal.App.4th 1462, 1470 [cleaned up].)

Application:

Although the arbitration agreement attached as Defendant’s Exhibit A does not contain Plaintiff’s signature, Defendant’s administrator Ms. Torres declares Defendant’s records reflect that Plaintiff electronically signed the agreement as part of the onboarding process on 3/11/24. (¶ 14.)

Plaintiff does not deny signing the March 2024 arbitration agreement. Rather, he declares he signed the onboarding documents without being told he could negotiate and did not understand he was separately agreeing to arbitration or given the arbitration rules. (¶¶ 2-6.) He further agreed to arbitration when accepting Defendant’s offers for the Sales Team Lead position and Sales Consultant position at later dates, but declares he did not intend to affirm a prior arbitration agreement at that time and the arbitration rules were not provided. (¶¶ 7-10.) When signing the August 2025 Sales Consultant agreement, Plaintiff stated he

		wanted to have an attorney review it but was pressured to sign it “under duress” by Defendant’s management. (¶¶ 13-15.) Plaintiff has not shown the March 2024 arbitration agreement was invalid. Plaintiff electronically consented to the detailed agreement, which specifies the arbitration shall be conducted pursuant to JAMS Employment Arbitration rules. Plaintiff has not shown the JAMS rules are substantively unconscionable under California law. Although Plaintiff later reaffirmed his consent to arbitration when signing documents accepting other positions within the company, the circumstances of those documents do not demonstrate unconscionability as to the initial agreement to arbitrate, which had already been executed at hiring. Defendant has demonstrated the existence of a binding arbitration agreement which is not unconscionable under California law. Plaintiff has failed to demonstrate there was no mutual consent or that unconscionability renders the agreement invalid. Therefore, the motion is granted.
12	24-01422867 <i>Zelaya vs. Nissan North America, Inc.</i>	Motion to Be Relieved as Counsel of Record Moving attorney has not shown he has complied with the requirements of California Rules of Court, rule 3.1362. It does not appear a proof of service of the form Notice and Motion (MC-051) or Declaration (MC-052) has been filed. The motion of Prestige Legal Solutions, P.C. to be relieved as counsel for plaintiff Veronica Zelaya is CONTINUED to August 27, 2026 at 10:00 a.m., in Department C33. Prestige Legal Solutions, P.C. is ordered to re-serve all moving papers along with a proof of service within five court days before the new hearing date. Moving attorney to give notice of new hearing date.